



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Vetter, PLA, Parks and Greenway Planner

Subject: A resolution supporting the conversion of a portion of Dutcher Ball Fields, located at 4200 Converse Avenue from perpetual public outdoor recreation use and committing to purchase and encumber one additional replacement property to be deed restricted for perpetual outdoor recreation use pursuant to the requirements set forth in the Land and Water Conservation Fund Act.

Date: August 23, 2023

Background:

The item for consideration is a resolution of support required by the LWCF conversion process to request conversion of a portion of Dutcher Ball Fields (Saddle Tramps Site), approximately 2.5 acres, to be removed from perpetual public outdoor recreation use for a new city fire station. The LWCF regulations require that we provide other suitable properties that meet LWCF requirements such as being of at least equal fair market value and of reasonably equivalent usefulness as trade. In October of 2022, the Governing Body, with Resolution #6278, previously approved three properties as replacement properties with all three having a total value of \$537,000.00. The value did not meet the requirement of at least equal fair market value as compared to the Dutcher Ball Field (Saddle Tramps) Fire Station site value of \$540,000.00, therefore, an additional property is needed for conversion. Appraisal has been completed for the Lewark property and along with the previous 3 properties meets the requirement of equal fair market value. The Lewark property is intended to be purchased with 6th Penny Greenway Expansion funding and will provide needed land for the Sun Valley Open Space to Kiwanis Park Greenway Connector.

Upon purchase, the City will be required to place deed restrictions on all four replacements properties which will restrict their use to outdoor recreational uses in perpetuity.

Enclosures:

Resolution

Map

Deed to include restriction

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION SUPPORTING THE CONVERSION OF A PORTION OF DUTCHER BALL FIELDS LOCATED AT 4200 CONVERSE AVENUE FROM PERPETUAL PUBLIC OUTDOOR RECREATION USE AND COMMITTING TO PURCHASE AND ENCUMBER ONE ADDITIONAL REPLACEMENT PROPERTY TO BE DEED RESTRICTED FOR PERPETUAL PUBLIC OUTDOOR RECREATION USE PURSUANT TO THE REQUIREMENTS SET FORTH IN THE LAND AND WATER CONSERVATION FUND ACT."

WHEREAS, The City desires to convert approximately two point five (2.5) acres of the Dutcher Ball Field ("Saddle Tramps") property to a non-recreational use to build a municipal fire station;

WHEREAS, Section 6(f)(3) of the Land and Water Conservation Fund Act ("LWCF") (now codified at 54 U.S.C. § 200305(f)(3)) and its implementing regulations at 36 C.F.R. Part 59 requires that no property acquired or developed with LWCF assistance shall be converted to other than public outdoor recreation uses without the approval of the Secretary of the Interior, and only if the Secretary finds it to be in accordance with the then existing Statewide Comprehensive Outdoor Recreation Plans ("SCORP") and only upon such conditions as the Secretary deems necessary to assure the substitution of other recreation properties of at least equal fair market value and of reasonably equivalent usefulness and location. Parks or recreation areas acquired or developed with LWCF assistance (in whole or part) are now referred to as "LWCF-assisted areas" and/or "LWCF boundary areas.";

WHEREAS, the City has agreed previously and pursuant to Resolution #6278 to take actions to purchase three (3) properties as replacement and has agreed to allow deed restriction for perpetual outdoor recreation use;

WHEREAS, the City intends to take action to purchase an additional property as replacement and agrees to allow deed restriction for perpetual outdoor recreation use (Greenway corridor) as described in attached exhibit, at the time of purchase;

WHEREAS, the proposed additional replacement property description is as follows and as described in attached exhibit; and,

Property #4, 4.36 acres, legal description:

A tract of Land situated in the SE $\frac{1}{4}$ SE $\frac{1}{4}$ and the SW $\frac{1}{4}$ SE $\frac{1}{4}$ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Commencing at the southwest corner of said Section 35; thence 77°50'00", grid azimuth from North, City of Cheyenne Datum, a distance of 2406.81 feet to the

point of beginning, said point also being a point on the South line of Sun Valley Addition Fourteenth Filing; thence 55°40'30", along the southerly line of said Sun Valley Addition Fourteenth Filing, a distance of 457.14 feet; thence 145°32'22", a distance of 129.07 feet; 51°52'57", a distance of 567.85 feet; thence 325°40'30", a distance of 91.51 feet, to a point on the South line of said Sun Valley Addition Fourteenth Filing; thence 55°40'30", along said South line, a distance of 558.51 feet, to the West line of Chukker Ridge 2nd Filing; thence 145°33'02", along said West line, a distance of 160.26 feet; thence 235°43'23", a distance of 1582.13 feet; thence 325°23'33"; a distance of 158.94 feet to the point of beginning. Containing 4.36 acres more or less.

WHEREAS, the project meets the criteria for the Land and Water Conservation Fund Conversion; and,

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, that the Governing Body of the City of Cheyenne, Wyoming supports a Land and Water Conservation Fund land conversion;

BE IT FURTHER RESOLVED, that the Mayor of the City of Cheyenne or other City official designated by the Mayor, is authorized to sign any necessary applications and/or other documents as required for a Land and Water Conservation Fund land conversion; and,

BE IT FURTHER RESOLVED, that the Mayor of the City of Cheyenne is hereby designated as the authorized representative of the City to act on behalf of the Governing Body on all matters relating to this conversion application, and in the event the conversion is awarded to the City of Cheyenne for this project, the Mayor is authorized to execute any necessary agreements and associated documents.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2023.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

LWCF Dutcher Ball Field/Saddle Tramps
Conversion, 2023

Project S. Cheyenne Greater Greenway # 56-00960
Dutcher Field: 56-00302 & 402
Cahill Park: 56-0098, 397, 398, 619, 671, 899
Location:
Lat / Lon N: 41.13081°, W: 104.74518°
Replacement Site 2A and 2B
Acres 8.37

Date: _____

SLO/ASLO Signature: _____

Sponsor Signature: _____



REPLACEMENT SITES 2A and 2B



LWCF Recreational Area Boundary Map

DRAWING NO.
1 of 1



CITY OF CHEYENNE
PARKS AND GREENWAY PLANNING
2101 O'NEIL AVENUE, SUITE 202
CHEYENNE, WYOMING 82001
(307) 638-4379

DRAWN BY: JV
DATE: 05-19-2023

File No.: 4521-4063884 (km)

WARRANTY DEED

Trace G. Lewark and Mary J. Lewark, husband and wife, grantor(s) of Laramie County, State of WY, for and in consideration of Ten Dollars and Other Good and Valuable Consideration, in hand paid, receipt whereof is hereby acknowledged, Convey and Warrant To

City of Cheyenne, grantee(s),

whose address is: 2101 ONeil Avenue, Cheyenne, WY 82001 of Laramie County and State of WY, the following described real estate, situate in Laramie County and State of Wyoming, to wit:

Parcel II

A tract of Land situated in the SE¼SE¼ and the SW¼SE¼ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, more particularly described as follows:

Commencing at the southwest corner of said Section 35; thence 77°50'00", grid azimuth from North, City of Cheyenne Datum, a distance of 2406.81 feet to the point of beginning, said point also being a point on the South line of Sun Valley Addition Fourteenth Filing; thence 55°40'30", along the southerly line of said Sun Valley Addition Fourteenth Filing, a distance of 457.14 feet; thence 145°32'22", a distance of 129.07 feet; thence 51°52'57", a distance of 567.85 feet; thence 325°40'30", a distance of 91.51 feet, to a point on the South line of said Sun Valley Addition Fourteenth Filing; thence 55°40'30", along said South line, a distance of 558.51 feet, to the West line of Chukker Ridge 2nd Filing; thence 145°33'02", along said West line, a distance of 160.26 feet; thence 235°43'23", a distance of 1582.13 feet; thence 325°23'33"; a distance of 158.94 feet to the point of beginning.

"Consistent with the Land and Water Conservation Fund Act of 1965 (Public Law 88-578; 78 Stat. 897) Section 6(f)(3), this property shall not be wholly or partly converted to other than public outdoor recreation uses without the pre-approval of State Parks and Cultural Resources and the U.S. Department of the Interior."

Subject to all covenants, restrictions, reservations, easements, conditions and rights appearing of record.

Hereby releasing and waiving all rights under and by virtue of the homestead exemption laws of the State of Wyoming.

Witness my/our hand(s) this _____ day of _____, 20_____.

Trace G. Lewark

Mary J. Lewark

State of Wyoming

County of Laramie

This instrument was acknowledged before me on this _____ day of _____, 20____, by Trace G. Lewark and Mary J. Lewark.

Notary Public

My commission expires: